

THE MASTER KEY

By John Fleming Wilson

CHAPTER XX.

The Great Wrecking Crew.

For some moments Dorr stared at this message from the dead. True, it was addressed to Ruth, but its message was to him, John Dorr. Now, he knew something of the tremendous stake for which Wilkerson was playing. So deep in thought was he that he did not notice that he was being spied upon. He must see Ruth and tell her. He slipped the letter into his pocket, not observing that the torn portion dropped to the table.

As he hurried out, fat with news, a Mexican stole into the room and, after a keen glance around, picked up the bit of paper. He had seen the triumphant expression on Dorr's face. That writing must be valuable. He tried to decipher it, but failed. So he thrust it into his shirt and stole away.

Half an hour later the last few lines of that letter were in Harry Wilkerson's hands.

It was not until he had explained to Ruth the circumstances under which he had opened the letter and handed her the inclosure that John discovered that the last portion was missing.

"Well," said Ruth cheerfully, "at least I have the key and now we know what those figures stand for."

"Yes," he assented, "the latitude and longitude where the wreck sank. But I don't like the disappearance of that last part. It was such a careless mistake. What if it should fall into Wilkerson's hands?"

Ruth laughed, dangling the key by its ribbon. "We have the master key."

"Yes," John replied more cheerfully. "He won't know where the place is, anyway. But we must arrange to find that wreck and get the chest."

"But if the ship sank?" she said.

"Lots of people will remember the wreck," was the response. "And with this accurate position of where it went down a diver will be able to recover what we want."

They discussed this for some time and decided that as soon as Kane returned with the warrant for Wilkerson they would start out for San Pedro and proceed to locate the sunken vessel and find if possible the chest and its precious contents.

"With Wilkerson safely in the sheriff's hands and Kane on the job here all will be safe," John said finally.

But Wilkerson, with the torn scrap of paper in his hand, was planning swiftly and certainly. With Vigna he had a scheme for that night. When the details were settled the hand smiled crookedly. "I'll get the key myself," he remarked.

"No roughness," warned Wilkerson. "With a lady?" demanded Vigna silkily. "Never!"

"All right," was the response. "But remember these troopers aren't overly fond of you."

The Mexican made his preparations to get the key that held the secret of the treasure with peculiar care. One would have thought he was going to a ball, so fanciful his dress, so careful his whole get-up. When he had completed his arrangements he presented a striking and dandy figure, with silver banded sombrero, heavy studded belt, embroidered shirt and flowing scarf.

Wilkerson contemplated him moodily. "You'd better wear a jumper and overalls," he snarled. "Any one can spot you a mile in that dandified dress."

Vigna kissed a dirty hand to the stars. "In honor of the lady," he said, with bravado. "Never shall it be said that Jose Vigna was ignorant of the niceties of dandyism, señor."

Finding his protests useless, Wilkerson subsided. Vigna departed, apparently for a stroll through the silent camp. He even stopped for a chat with a watchful trooper, who readily believed his casual statement that he was going on a lover's expedition.

It was just midnight when Vigna stood over the bed on which Ruth lay asleep. For a long moment he stood there in his gaudy finery watching her. He seemed almost on the point of waking her in order to satisfy his overweening vanity. But the clank of a bridge chain outside warned him that he stood in great peril. With swift fingers he touched the ribbon, bent over and gently drew out the key. He cut the ribbon with one slip of his knife and looked at his booty. But the girl's immovable and lovely face drew his eyes again to her. With a sweep of his arm he lifted his heavy hat to her and passed out, silent as a cat of his native mountains.

With the key in his possession Wilkerson became suddenly his own nervous self. He must get away instantly, he knew. Kane would be back in the morning with a warrant. Already he was being watched by the suspicious troopers. He must escape this very night.

After a short conversation with Vigna and the appointment of a future rendezvous, Harry Wilkerson armed himself and started lazily down into the camp to see what was moving. Nothing stirred. He returned to the hill camp and thence swiftly and quietly made his way upward, taking advantage of every bush and rock that might afford him screen.

He was almost to the top when a sentry challenged him and stepped forward.

"I'm merely going out a little way for a walk," Wilkerson explained.

"Not allowed after nightfall," was the response.

Without further parley, Wilkerson leaped forward, grasped the man's rifle and tripped him. A moment later he was footing it up to the crest at top speed, with the sentry's cries for help urging him on.

Before he could reach the divide a bullet whizzed by his head, then another. He turned madly and fired rapidly down into the shadows at his pursuers. He cursed himself for his folly when a second sentry appeared above him, drawn by the flash of his shots to his hiding place. There was but one refuge, the mine shaft. He

plunged obliquely downward for it. Naturally enough, the troopers thought their quarry was cornered, but Wilkerson drove straight on downward to an old working, mounted again, crossed by a disused gallery and finally emerged far up the cliff. On his way he had picked up a coil of rope, and when he found himself on the edge of the precipice and his pursuers gaining on him he made one end of the rope fast and speedily started to descend. But the distance was too great. Before he was halfway to the bottom he had been discovered, and he felt the rope being hauled up. In despair, with a madman's strength, he swung far out and then in, dropping on a little ledge concealed by the overhang of the cliff.

As the rope came free in their hands the pursuers realized that their prey had escaped them. They peered over. Surely he had fooled the law only to meet death on the rocks far below.

On his giddy perch Wilkerson heard their awed speculations and laughed silently. Then he crawled away. In the distance he heard the screech of a locomotive whistle, marking the passage of an express. The freight would be due in two hours. He must make it.

Tom Kane arrived early in the morning to find the camp in an uproar. The Mexicans had quietly vanished. Ruth was mourning the loss of the master key, and the sheriff, staring at the now useless warrant, was beyond words to express his chagrin.

John Dorr alone was serene, though he realized that Wilkerson had again checked him. But the immediate need of the hour was haste. He instructed Kane to take charge of the mine and directed Ruth to prepare for a trip to the coast that afternoon.

"Luckily I copied those figures," he said grimly.

Two days later John Dorr and Ruth were steaming up the channel from San Pedro in a launch fitted with diving outfit. The skipper of the launch remembered perfectly the burning of the steamer and, now that he knew the position where it sank, gave out great hopes of finding the bulk.

"The sea is shallow there, and the tides aren't strong enough to move her," he stated. "The only thing is, somebody may have been ahead of us."

"Wilkerson couldn't be ahead of us," John assured Ruth. "I inquired carefully at San Pedro."

Yet at noon his unspoken fears were realized. There was another powerful launch ahead of them which their captain identified as a diving and salvage boat from San Diego.

"Then they'll get ahead of us!" Ruth murmured. "After all our trouble!"

The launch captain and the diver both comforted her by stating that the given position was not far away, that it was sometimes a matter of days to find a wreck even if the approximate location was known and that at any rate they would soon be near enough to see whether the other craft was successful.

Two hours later Wilkerson's launch was swinging easily over the low



Her Eyes Filled With a Mingling of Triumph and Hatred.

swells not a mile from the bluff shore, and they could see his diver preparing to go down.

"I hope he doesn't find it!" breathed Dorr as he urged his own men to greater speed.

"They've struck the spot if those figures of yours are correct," was the reply. "But time will tell."

When the two boats were close together John saw that Mrs. Daniels was with Wilkerson. He could see the bronze glint of her eyes, her eyes filled with a mingling of triumph and hatred. And that look grew brighter and more malicious when the diver, coming up from his first descent, showed a large bit of wood, evidently from a wreck. Though they could not hear the words, those on Dorr's boat could understand the directions that were being given.

"Get over and send your man down quick!" commanded Dorr.

The captain and the diver glanced at each other doubtfully; then the former shook his head.

"No," he said gruffly. "They found it, and it's theirs by sea law. Anyway I ain't going to send my man down when there's danger, as there always is with two men working under water at cross purposes."

"But they'll get the chest!" cried Ruth.

"Wait and see," said the imperturbable diver.

Half an hour later John turned to Ruth and said miserably: "Well, they have got it. That ends this excursion."

"Is that your chest, miss?" demanded the captain.

"Yes, yes, my father's!"

"Well," he said slowly, "there's nothing to hinder us going over and seeing what it looks like, is there?" He signaled his engineer and put his boat over.

As they ranged alongside the other launch Wilkerson raised his face to Dorr's wrathful gaze and smiled. Instinctively John put his hand on his gun. A rough touch on his shoulder recalled him.

"This ain't no piratical cruise," the skipper remarked meaningly. "That

man was hired for \$5000 to me, and we ain't got no fight with each other. "Of course," Dorr agreed willingly. Then he made a leap for the deck of the other boat, intent on regaining the chest single handed.

For the moment Wilkerson was paralyzed by the boldness of this move, but a moment later strong hands had flung



Ruth Tried to Comfort John Dorr.

John back on his own deck, and his skipper, thinking that matters had gone far enough, soon put a safe distance between the two craft.

A little later Wilkerson's launch started off down the channel.

"Now or never," said Dorr to the captain of his own boat. "Don't lose sight of them. I must know where they land and what they do with the chest."

"They're hurrying some," was the response, "but I guess we can keep 'em in view, at least till night comes on."

While the moon was lighting up the smooth waters of the channel that night Ruth tried to comfort John Dorr. And as he listened to her gentle words and watched the loveliness of her face under the silver beams he forgot the bitterness in his heart and knew something of a happiness that Wilkerson, pining over water-sunk wrecks in raging despair, was never to know.

(To be continued.)

NEW BRITISH GUN HELD BETTER THAN FOE'S HOWITZERS

BOOM OF GIANT FIELD PIECES NOW USED IN FRANCE HEARD 20 MILES

MONSTER SHELLS ENABLE THE CAPTURE OF STRONG POSITIONS

"Eyewitness" Tells of Many Defeats of Kaiser's Troops—Houses Are Blown Up Bodily

LONDON, Feb. 12.—The British army in France is now using heavy howitzers, which, according to a report from the official "eyewitness" with the expeditionary forces, have gained ascendancy over the heavy German guns.

These howitzers, he says, were used in successful attacks on the German positions in the brick fields south of La Bassée Canal a week ago tonight.

"Our heavy howitzers took part in this bombardment, their fire being directed on the railway triangle," the "eyewitness" says. "The boom of these pieces and the detonation of their shells were audible 20 miles away, above the roar of the other artillery, while to those close at hand the shrieking of the great projectiles through the air was most impressive, as were volumes of smoke and debris thrown up."

"The effect of the lyddite shells was truly terrific, one house being blown bodily into the air, and as they burst among the brick stacks they created great havoc among the enemy."

"The assault was launched against a strong position, or 'keep,' among the stacks of bricks held by the Germans. Our storming columns rushed the work from three sides at once and captured it with little loss, for, as prisoners afterward said, the noise of the bursting shells was so great and the clouds of dust with which the defenders were surrounded were so thick that they did not observe our men advancing until too late."

"At the same time the trenches to the north of this point, between it and the canal, were stormed by another party."

"By seizing these points we were enabled to occupy a continuous line southwards from our forward posts on the canal, which formed an advantageous position in front of the brick fields."

"We captured 19 unwounded prisoners, in addition to many wounded, a trench mortar and machine guns. The Germans left 70 dead on the ground, while our casualties were insignificant."

Grants Pass: Portland architect is to prepare plans for an \$80,000 courthouse.

FADE OF NEW SHIP BILL IN SENATE IS HELD DOUBTFUL

SECOND ADMINISTRATION MEASURE FAILS TO SATISFY INSURGENTS

WORK ON APPROPRIATIONS BY CONGRESS TO BEGIN SOON

Extra Session Is Not Regarded as Likely by Leaders—Supply Bills Insisted on by Many

WASHINGTON, Feb. 17.—The amended government ship-purchase bill rushed through the house early today failed to gain ground when it reached the senate, and administration leaders tonight were in doubt as to what would be its fate.

Early in the day it was discovered that the amended bill had failed to satisfy radical Democrats or Progressive Republicans. Without support of either of these factions it could not be passed. In this situation the regular Democratic leaders realized that nothing could be done unless some change in the measure could be effected in conference, but all their efforts to send the amended bill to conference failed.

Another attempt will be made tomorrow, and then Republican leaders, who insist the bill is dead, are expected to demand an understanding that appropriation bills will be taken up before they cease their opposition.

Interest centered today in the special senate committee's inquiry into charges of outside influences concerning the ship measure. At the first of the hearing Bernard N. Baker, of Baltimore, formerly connected with the Atlantic Transportation company, told the committee of conferences with Secretary of the Treasury McAdoo, in which he told the secretary that 80 per cent of foreign ships tied up in American port because of the war could not be considered as available for purchase by the United States for freight service because they were passenger vessels.

Mr. Baker also said that W. J. Sicke, an official of the Hamburg-American line, had told him he had received orders from the German government not to sell any German vessels in American ports to the United States.

Late in the day administration leaders held a long conference and Postmaster Burleson discussed with them appropriation bills to be taken up in case the ship bill goes to conference or is pigeonholed. No agreement was reached, but many senators believed that in some way the work of grinding out appropriation bills would be undertaken within the next day or two.

FAST OF 62 DAYS IS ENDED BY DEATH

PALO ALTO, Cal., Feb. 17.—His life was the forfeit paid by Louis C. Roth aged 39, a tailor, for gaining the distinction for having established a longer fast than in the authenticated history of mankind.

Professor R. E. Swain and Dr. M. C. Perry of Stanford university and Dr. L. E. Phillips, Roth's physicians, were with him when he died last night. They had tried for days to persuade the tailor to break the fast which he had undertaken to cure himself of a long-standing stomach complaint, and they succeeded in their efforts only when it was too late.

Roth, who knew he was about to die, expressed a wish that his body be given to the medical department of Stanford university. This will not be done as Roth was so emaciated there is scarcely anything left to add science. He weighed 145 pounds when he began his fast and 75 when he died.

Roth started his fast 62 days ago. On the sixtieth day he took a teaspoonful of orange juice. The devitalized organs would not respond.

The longest previous fast attested by medical records was that of Signor Merlati, who went without food for 50 days in Paris in 1886.

CASTORIA

For Infants and Children. The Kind You Have Always Bought Bears the Signature of *Wm. A. Porter*

The Fossil Journal reports on the horse market in Wheeler county as follows: "Since there is not only a strong foreign demand for horses, but also an increased demand in our home markets, due to greater activity on the farms, the outlook is extremely favorable, not only for good prices but also for a brisk demand."

It Really Does Relieve Rheumatism

Everybody who is afflicted with Rheumatism in any form should by all means keep a bottle of Sloan's Liniment on hand. The minute you feel pain or soreness in a joint or muscle bathe it with Sloan's Liniment. Do not rub it. Sloan's penetrates almost immediately right to the seat of pain, relieving the hot, tender, swollen feeling and making the part easy and comfortable. Get a bottle of Sloan's Liniment for 25 cents of any drugist and have it in the house—against Colds, Sore and Swollen Joints, Lumbago, Sciatica and like ailments. Your money back if not satisfied, but it does give almost instant relief. Buy a bottle today.

NUMBER OF STOCK NEW OUTBREAK IN SHOWS INCREASE CATTLE CONFINED

GOVERNMENT STATISTICS CON- TRADICT REPORT HIGH PRICES ARE NEAR SECOND SPREAD OF FOOT-AND-MOUTH DISEASE FOUND IN 9 CITIES.

ALL ANIMALS SHOW BIG GAINS GOVERNMENT CLOSES STOCK YARDS

Prediction Meat Will Reach 50 Cents and Shoes \$10 Is Denied—Effect of War on American Conditions Studied. Only Animals Intended For Immediate Slaughter Are Affected And Alliment Has Not Bothered Farmers.

WASHINGTON, D. C., Feb. 17.—For the first time in many years, information collected by the United States department of agriculture shows that all classes of livestock in the United States are increasing in numbers. Thus the real facts contradict absolutely sensational reports that prices for meat and shoes would rise to unprecedented figures in the immediate future. It has even been said that a Government statistician predicted meat at 50 cents a pound and shoes at \$10 a pair within the next two years. Such a prediction, the real government statisticians say, is quite unwarranted.

On January 1, for example, the number of beef cattle showed an increase of 3.4 per cent over the number a year ago, and an actual increase of 1,212,000 head. Hitherto the number of beef cattle in the United States has declined steadily since 1910. There are also more milk cows in the country than last year, the increase being 2.5 per cent, or in numbers 225,000. Swine, however, showed the greatest increase of all classes—9.5 per cent. On January 1, 1914, there were only 58,933,000 swine in the country, on January 1, 1915, 64,618,000. This is accounted for by the fact that the production of swine can be increased more rapidly than that of other classes of livestock and consequently an enlarged demand can be met more readily.

The prediction of 50-cent meat and \$10 shoes was accompanied by the declaration that France alone has taken from American nearly 300,000 horses within the last 5 months and that the other countries at war have drawn up on our resources in the same proportion. The facts are that more horses were on the farms of the United States on January 1, 1915, than there were a year before, the increase being 233,000 head or 1.1 per cent. So far from France alone having taken 300,000 horses from us, the total exports since the war began have certainly been much less than 100,000 and very likely not over 75,000. Since there are approximately 25,000,000 horses altogether in the United States, the drain on account of the war is scarcely alarming.

It is in fact pointed out by government statisticians that the market value of farm horses has actually declined to such an extent that the average is now about \$6 a head less than a year ago. This decline is most noticeable in the cotton states and in those states which make a business of breeding horses for sale in other sections. Mules have declined even more than horses, their value being now \$11.50 per head less than a year ago. The explanation is to be found in the depression on account of the cotton situation in the south, which is the great market for mules. An improvement in this respect will do much to restore the demand for horses, so that government specialists while ridiculing the notion of a horse famine are convinced that farmers will find it profitable to use good work mares for breeding more stock.

FOREIGN DEMAND IS CAUSE OF HOP RAISE

PORTLAND, Ore., Feb. 17.—There is a rather active tone in the hop market and sales are reported at 13c a pound, a liberal advance over previous purchases. There is now quite a fair demand for hops from Europe and with liberal English orders available, there is much more desire among the trade to take hold.

Louis Lachmund was reported to have purchased a lot of extra select hops at 13½ or 14c a pound, but this could not be confirmed here.

Bishop of Salem is reported the purchaser of a Silverton lot of hops at 13c, and several other dealers are said to have taken crops at the same price. The demand for hops at this time is confined almost exclusively to the foreign interests. Practically all recent business confirmed here has been for English account. American interests are seemingly well stocked with supplies at this time and so sales are reported for domestic account.

NEW YORK, Feb. 13.—Frederick Mors, who has confessed that he killed eight inmates of the Odd Fellows' Home at Yonkers, will be declared insane and deported. This, at least, was the declaration here today of an official of the home, who said he knew positively there would be no grand jury investigation of his confession. The authorities here are beginning to accept his stories of conditions at the home as insane ravings.

ONE SPOONFUL GIVES ASTONISHING RESULTS

Oregon City residents are astonished at the QUICK results from the simple mixture of buckthorn bark, glycerine, etc., known as Adler-Ka. This remedy acts on BOTH upper and lower bowel and is so THOROUGH a bowel cleanser that it is used successfully in appendicitis. ONE SPOONFUL of Adler-Ka relieves almost ANY CASE of constipation, sour or gassy stomach. ONE MINUTE after you take it, the gases rumble and pass out.

NEW OUTBREAK IN CATTLE CONFINED

SECOND SPREAD OF FOOT-AND-MOUTH DISEASE FOUND IN 9 CITIES.

GOVERNMENT CLOSES STOCK YARDS

Only Animals Intended For Immediate Slaughter Are Affected And Alliment Has Not Bothered Farmers.

WASHINGTON, D. C., Feb. 17.—The discovery of foot-and-mouth infection in the stockyards of nine cities—Chicago, Pittsburgh, Indianapolis, Louisville, Buffalo, Cincinnati, Columbus, Jersey City and Baltimore—which has resulted in the closing of these stockyards until they have been thoroughly disinfected, is regarded by the federal authorities as undoubtedly a setback in their campaign to eradicate the plague but is considered to be by no means as serious a matter as if the disease had broken out in stock held on the farms.

All the cattle affected were destined for immediate slaughter at various points. No stockers or feeders were included among them. The infection therefore has been laid over a trail that runs in straight easily-traced lines from city to city. The stamping out of it is principally a matter of disinfecting all cars used in these shipments and all yards through which they have passed. On the other hand when the disease first broke out last fall it was spread over the country by a large number of shipments of stockers and feeders which were distributed more or less broadcast to the farms in many states. To trace each one of the animals in these shipments to its ultimate destination was a task of much greater magnitude than the authorities now face.

The new outbreak, however, in the opinion of the federal authorities emphasizes the necessity of adhering for some time longer to the quarantine regulations that prohibit the shipment of any stock from the quarantined area for any purpose except immediate slaughter, and also prohibit its shipment at all to points in free area. If feeders and stockers were to be sent out from the quarantined areas there would always be the danger of the disease spreading once more among the farms, and the country being thrown back in the condition that it was in in October.

The government also holds that cattle purchased for slaughter and found to be affected with foot-and-mouth disease shall not be paid for but may be condemned under the Federal meat-inspection law like any other diseased stock. Purchasers of cattle for slaughter in territory where there is reason to suspect the existence of the disease, purchase at their own risk, and there is no reason why the government should insure them against the possibility of loss. For the government to do this would be in fact to put a premium upon the reckless buying of suspected animals and make the task of ultimately eradicating the disease much harder. Inspectors have also been warned against the possibility that stock ostensibly intended for immediate slaughter might be diverted for sale as feeders and stockers, and they have been instructed to see that all such stock is slaughtered without delay.

CHICAGO, Feb. 12.—The Academy of Music, a Chicago landmark, was destroyed by a fire which started in an adjoining store today. A fire captain was injured and 12 others narrowly escaped injury from falling roofs. The loss was estimated at \$100,000.

SAN FRANCISCO, Feb. 12.—Emil Gundlach was acquitted of the charge of murdering Louis Andrus, and was immediately rearrested on a charge of arson. He is accused of firing the Municipal hotel at the time Andrus was shot.

Why Let a Terrible Cough Hang On and Wear You Out?

Loosen Its Grip with that Wonderful Throat and Lung Medicine, Foley's Honey and Tar Compound.

Coughs that "hang on" mostly settle on the lungs, and they fairly eat the life out of you. They use up your strength, lower your vitality, and pave the way for serious lung and bronchial diseases.

WILLIAM B. RICHMOND, Ingleswood, Cal., says: "FOLEY'S HONEY AND TAR acts so well in harmony with nature, it is more like a food than a medicine."

E. J. SARGENT, Dallas, Texas, writes: "I had a terrible cough which would not let me breathe. I spent much money and tried many kinds of treatment, but found nothing which would cure me. At last I tried FOLEY'S HONEY AND TAR and it completely relieved me of all my symptoms and my cough entirely disappeared."

For all coughs, colds, croup, bronchitis, asthma, grippe, whooping cough, throat and lung trouble, you will find it a medicine without a peer. Every good druggist is glad to sell it, for it gives satisfaction to his customers and contains no opiates. You cannot get a substitute to do for you what FOLEY'S HONEY AND TAR will do. 25c, 50c, \$1.00 size. *** EVERY USER IS A FRIEND. Jones Drug Co. (Adv.)

GERMANY BLAMED FOR CRISIS HERE BY BRITISH NOTE

LONDON DECLARES NATION WILL CONTINUE TO PROTECT ITS INTERESTS

EARL GRAY MAKES NO PROMISE TO CHANGE PRESENT POLICY

"Civilian Population" Is Declared Merged With Military Organization—Ships Will Still Be Detained

WASHINGTON, Feb. 17.—Great Britain's second and complete reply to the American note of protest, which on December 25 last asked for an early improvement in the treatment of American commerce by the British fleet, was made public tonight by mutual agreement between the state department and the British foreign office.

The note, addressed to Ambassador Page by Sir Edward Grey under date of February 19, denies that the depression in American industries is due to the activity of the British fleet, and suggests among other causes the shortage of shipping facilities, the consequent diminution of cotton trade and the destruction by submarine mines "laid by the enemy indiscriminately" of many neutral vessels.

After giving a lengthy detailed answer to the charge that American ships and cargoes were being unduly detained, the communication contains in its concluding paragraph the announcement that Great Britain intends to take retaliatory measures against the German submarine campaign against enemy ships, but does not reveal their nature.

Conceding that foodstuffs intended for the civil population of a country are not contraband, the British government points out that "in any country in which there exists such tremendous organization for war as now obtains in Germany, there is no clear division between those whom the government is responsible for feeding and those whom it is not."

"It will still be our endeavor," says the final paragraph, "to avoid injury and loss to neutrals, but the announcement by the German government of their intention to sink merchant vessels and their cargoes without verification of their nationality or character and without making any provision for the safety of non-combatant crews or giving them a chance of saving their lives has made it necessary for his majesty's government to consider what measures they should adopt to protect their interests."

ROOSEVELT CALLED IN DAYTON HEARING

WHEELING, W. Va., Feb. 16.—Announcement that ex-President Roosevelt had been summoned to appear before the congressional sub-committee investigating charges against Federal Judge Dayton of the northern district of West Virginia, was made today by United States Marshal Smith.

Judge Dayton was appointed to the federal bench in 1905 by Colonel Roosevelt, who is expected to appear Thursday at a session of the committee to be held in Washington.

The first witness today, Widner Corcoran, clerk of the circuit court of Harbourside county, West Virginia, read a deposition alleged to have been made by Judge Dayton in a suit in Harbourside county.

The deposition read: "There